

LARMIE KARNEH et. al., Appellants, v. **REPUBLIC OF LIBERIA,** Appellee.

JUDGMENT WITHOUT OPINION

Decided: February 4, 1982.

At the call of the case, Counsellor S. Edward Carlor appeared for the appellants and the Ministry of Justice through the Solicitor General, Jimmie S. Geizue, and Assistant Minister for Litigation, Flaawgaa R. MacFarland, assisted by Counselor Daniel Draper of the Brumskine Law Firm appeared for the appellee and informed this Court that they have filed a notice of abandonment. Counsel for appellants then prayed this Court that in view of the State's abandonment, appellants be given credence so that the ruling in the cancellation proceedings be reversed and the deed be declared valid. Appellee's counsel having abandoned further prosecution of this case, it is therefore adjudged that the abandonment as filed by counsel for the appellee is hereby noted and the judgment of the cancellation proceedings be and the same is hereby reversed and the parties remained in *status quo* as though there has been no cancellation proceedings ever instituted. The Clerk of this Court is instructed to send a mandate to the trial court ordering it to resume jurisdiction and enforce this judgment. And it is hereby so ordered.

NOTE: His Honour Roosevelt S. T. Bortue participated in the hearing and determination of this case but died before the preparation of this judgment. Hence, he did not sign it.

NOTE: Justice M. Kron Yangbe being counsel for one of the parties prior to his elevation to the Bench did not take part in the hearing and determination of this case. Hence, he did not sign this judgment.